

Syllabus

bona fide belief of a right to enter vitiates probable cause to arrest for unlawful entry. Thus, it concluded that the “uncontroverted evidence” of an invitation in this case meant that the officers could not infer the partygoers’ intent from other circumstances or disbelieve their story. But looking at the entire legal landscape at the time of the arrests, a reasonable officer could have interpreted the law as permitting the arrests here. There was no controlling case holding that a bona fide belief of a right to enter defeats probable cause, that officers cannot infer a suspect’s guilty state of mind based on his conduct alone, or that officers must accept a suspect’s innocent explanation at face value. And several precedents suggested the opposite. Pp. 65–68.

765 F. 3d 13, reversed and remanded.

THOMAS, J., delivered the opinion of the Court, in which ROBERTS, C. J., and KENNEDY, BREYER, ALITO, KAGAN, and GORSUCH, JJ., joined. SOTOMAYOR, J., filed an opinion concurring in part and concurring in the judgment, *post*, p. 68. GINSBURG, J., filed an opinion concurring in the judgment in part, *post*, p. 69.

Todd S. Kim, Solicitor General of the District of Columbia, argued the cause for petitioners. With him on the briefs were *Karl A. Racine*, Attorney General, *Loren L. Alikhan*, Deputy Solicitor General, and *Carl J. Schifferle*, Assistant Attorney General.

Robert A. Parker argued the cause for the United States as *amicus curiae* urging reversal. With him on the brief were *Acting Solicitor General Wall*, *Acting Assistant Attorney General Readler*, *Deputy Solicitor General Dreeben*, *Rachel P. Kovner*, *Douglas N. Letter*, *Barbara L. Herwig*, *H. Thomas Byron III*, and *Dana Kaersvang*.

Nathaniel P. Garrett argued the cause for respondents. With him on the brief were *Charlotte H. Taylor* and *Julia Fong Sheketoff*.*

*Briefs of *amici curiae* urging reversal were filed for the State of Utah et al. by *Sean D. Reyes*, Attorney General of Utah, *Tyler R. Green*, Solicitor General, and *Kyle J. Kaiser* and *Meb W. Anderson*, Assistant Attorneys General, and by the Attorneys General for their respective jurisdictions as follows: *Steven T. Marshall* of Alabama, *Leslie Rutledge* of Arkansas, *Douglas S. Chin* of Hawaii, *Lisa Madigan* of Illinois, *Curtis T. Hill, Jr.*, of Indiana, *Derek Schmidt* of Kansas, *Andy Beshear* of Kentucky, *Jeff*